Arbitration Agreement by comparing Plaintiff's signature on the agreement with numerous additional documents contained in Plaintiff's personnel file, including approximately 25 additional signature exemplars. (Supp. Van Hooser Decl., ¶ 2, Exh. 1.)

On the record before the court, Plaintiff's conclusory denial and claimed lack of recollection are insufficient to overcome Defendants' prima facie showing authenticating the Arbitration Agreement. To the extent Plaintiff contends the signature is forged or otherwise inauthentic, Plaintiff has not submitted sufficient evidence showing such.

Enforcement by Non-Signatory?

Plaintiff also argues that Defendant Chapters Capistrano, LLC cannot enforce the Arbitration Agreement because it is not a named party to the agreement. Plaintiff argues the agreement refers only to "the Company," an undefined term, and Defendants' evidence identifies the employer as "Sunshine Behavioral Health Group dba, Chapters Capistrano," not as separate legal entities.

Under the doctrine of equitable estoppel, a nonsignatory may enforce an arbitration agreement where the plaintiff's claims against the nonsignatory are dependent upon, founded in, or inextricably intertwined with the obligations imposed by the agreement containing the arbitration clause. (*Goldman v. KPMG LLP* (2009) 173 Cal.App.4th 209, 217-219.) Equitable estoppel applies where a plaintiff alleges substantially interdependent and concerted misconduct by both a signatory and nonsignatory arising from the same underlying contractual relationship. (*Boucher v. Alliance Title Co., Inc*. (2005) 127 Cal.App.4th 262, 271-273.)

Here, Plaintiff's claims against Defendants arise from the same alleged employment relationship and underlying conduct, and Plaintiff alleges both entities jointly employed her. (FAC, ¶¶ 1, 13-14, 17.) Because the claims are intertwined with the employment relationship governed by the Arbitration Agreement, Chapter Capistrano, LLC may enforce the Arbitration Agreement.

Unconscionable?

Plaintiff also argues that the Arbitration Agreement is unenforceable because it is unconscionable.

The doctrine of unconscionability refers to "an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1133.) It consists of both procedural and substantive components – "the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (*Ibid*.)

In order to be unenforceable due to unconscionability, "'[procedural and substantive unconscionability] must both be present.'" (*Armendariz v. Found Health Psychcare Servs., Inc.*, 24 Cal.4th at 114, quoting *Stirlen v. Supercuts, Inc.* (1997) 51 Cal.App.4th 1519, 1533; see also, *Wherry v. Award, Inc*. (2011) 192 Cal.App.4th 1242, 1246 ["To be voided on [unconscionability] ground[s], the agreement must be both procedurally and substantively unconscionable."].) However, "they need not be present in the same degree." (*Armendariz*, 24 Cal.4th at 114; *Parada v. Superior Court* (2009) 176 Cal.App.4th 1554, 1570.)

"Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively unconscionable the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz*, 24 Cal.4th 83 at 114.)

"The party resisting arbitration bears the burden of proving unconscionability." (*Pinnacle Museum Tower Ass'n v. Pinnacle Market Dev.* (US), LLC (2012) 55 Cal.4th 223, 247.)

<u>Procedural Unconscionability</u>